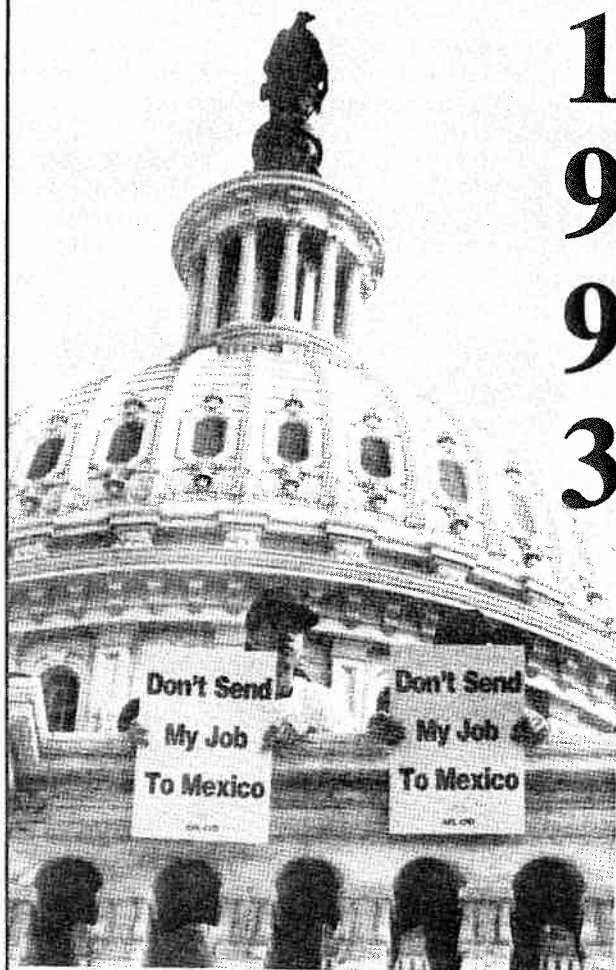


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Report on Congress



From the Lincoln Memorial (above) to the streets of San Francisco (below) union members marched and rallied for pro-labor legislation, from Workplace Fairness to health care to jobs.

While the fight against NAFTA took the spotlight at the end of 1993, the first session of the 103rd Congress was marked by some of labor's biggest legislative victories in more than a decade. Above, these two union workers summed up what millions of others told Congress in phone calls, telegrams and letters. Below, union workers at the annual labor day parade in Cincinnati play the same tune.



Best Session in Years Ends on Sour Note with NAFTA

By Lane Kirkland

Despite some of the best success in more than a decade for labor's overall legislative agenda, the first session of the 103rd Congress will be remembered primarily for what we did not achieve—and that is the defeat of the North American Free Trade Agreement.

Responding to the overwhelming sentiment of union members across the country, the AFL-CIO and its affiliates coordinated an immense grassroots effort to convince members of Congress that NAFTA is a bad deal for working people throughout North America.

Though Congress' approval of NAFTA was a bitter disappointment, *it certainly was not a defeat for organized labor*. The trade union movement was opposed by the entire power structure of the country, which had huge amounts of private and public funds available to air the pro-NAFTA message and to win votes in Congress. We have every right to be proud of our effort.

... 1993 was a year when the logjam broke for a number of labor-backed bills that for years had been stalled in Congress by presidential vetoes and threats of vetoes...

Despite the outcome, labor accomplished something quite remarkable during the NAFTA debate. For the first time, trade policy moved out of the backrooms of the elite and into the living rooms of average Americans. Never before have so many Americans written, called and petitioned their representatives to oppose a trade agreement. Such progress will surely enhance our future efforts on behalf of working people, their families and their communities.

Furthermore, 1993 was a year when the logjam broke for a number of labor-backed bills that for years had been stalled in Congress by presidential vetoes and threats of vetoes.

With the support of a new, Democratic administration, Congress got off to a fast start early in the year by passing the Family and Medical Leave Act, which President Clinton quickly signed into law. The new law allows workers to take up to 12 weeks of unpaid leave of absence for the birth or adoption of a child or the serious illness of a family member, and it requires the continuation of the worker's health benefits during the leave. Though the new benefits are not as generous as those provided in other industrial countries, passage of this law is a giant step toward protecting working Americans from being forced to choose between a job and the health and well-being of their families.

Another major victory for labor came later in the year when President Clinton signed into law a Hatch Act reform bill that had been first proposed nearly two decades ago. The legislation, which restores some measure of political rights to more than three million federal and postal employees, had twice been vetoed by Republican presidents—most recently by George Bush in 1990.

President Clinton also signed two emergency unemployment benefits extension bills and a "motor-voter" bill to expand the electorate, each of which has been the target of veto threats by his predecessor. In addition, Congress enacted the President's five-year, \$500 billion deficit reduction plan, backed by the AFL-CIO, that begins the task of restoring

a measure of equity to the tax system by asking those who benefited substantially from the tax cuts of the 1980s to bear their fair share of the burden of government.

Also enacted into law was a labor-supported housing initiative that authorizes the federal government to provide up to \$100 million over five years in assistance for low-income housing programs that use pension funds as a source of financing. The authorization is a key component of the AFL-CIO Housing and Building Trusts' National Partnership for Community Investment, a program that will build affordable housing in 33 cities while creating 20,000 union jobs.

Another success in 1993 was congressional passage of one-year bans on Davis-Bacon regulations that would expand the use of low-wage, untrained helpers in construction trades and on regulations governing apprenticeship programs.

Among the other positive changes accomplished by the new president in his first months in office was his swift reversal of his predecessor's insulting and oppressive executive orders which were designed to undermine collective bargaining and to harass and intimidate trade unions and their members. President Clinton also rescinded Ronald Reagan's lifetime ban on federal employment for striking members of the Professional Air Traffic Controllers Association (PATCO).

But major economic stimulus programs, designed to create 500,000 jobs to put Americans back to work and help speed the recovery, fell victim in the Spring to a filibuster launched by Senators who sanctimoniously donned the mantle of "fiscal responsibility." As a result, the unemployment rate remained stubbornly high for most of the remainder of the year.

... The fight for health care reform will not be an easy one. Those who profit handsomely under the current, inequitable health care system are already spending millions to spread distortion and create public confusion about health care reform...

Unfortunately, the filibuster—the last bastion of minority rule—is also standing in the way of labor's goal of enacting legislation to ban the permanent replacement of workers who exercise their legal right to strike. The Workplace Fairness Act will continue to be one of the AFL-CIO's top priority issues. Having already passed the House by a large margin in the first session, our challenge will be to find the 60 Senate votes necessary to overcome the Republican-led effort to kill the bill.

Another high-priority issue in the second session will be the comprehensive reform of our health care system. President Clinton has introduced legislation that was enthusiastically endorsed by the AFL-CIO Convention last October, and we will be his most reliable troops in the upcoming effort to win congressional passage.

The fight will not be an easy one, to be sure. Those who profit handsomely under the current, inequitable health care system are already spending millions to spread distortions and create public confusion about health care reform. Meanwhile, congressional opponents of real reform are pushing

so-called "alternatives," which can be more appropriately described as what to do *instead* of a health care plan. Opponents, including the insurance industry, some doctors' groups, conservative Democrats and most Republicans, will surely mount a rear-guard action against genuine health care reform—cloaked, of course, with a cloud of jargon about the ultimate wonders of the free market, sweet charity and the healing powers of "tax-free medical accounts."

We know, of course, that nothing short of full-scale restructuring will cure what ails our health care system, and the labor movement will be calling on its most vital resource—our millions of members, retirees, family members and friends—to help the universal, comprehensive health care plan carry the day in Congress.

Among the other items on labor's legislative agenda for 1994 is the goal of overhauling the Occupational Safety and Health Act for the first time in two decades. We've learned the hard way that it's one thing to have OSHA laws on the books, but ensuring their effectiveness in reducing job-related deaths is another story. With minimal fines and inspections, it's no wonder that more than 10,000 people die each year at the workplace—one worker for every hour of every day.

The Senate will also take up two major education bills, one establishing skill and performance standards for students and a "School-to-Work" bill to help non-college-bound students. Both are supported by the AFL-CIO and have been passed by the House.

Congress and the Clinton administration will face a wide variety of policy challenges as they attempt to set America on the right course for the remainder of the decade and into the 21st Century. Among them will be sustaining the economic recovery and providing jobs for all who want to work, helping Americans make their streets safer and the communities stronger and more vibrant, restoring the vitality of the middle class and reversing the growing disparity between rich and poor, and bringing the light of democracy to areas of the world where oppression and intolerance still prevail.

Through political and legislative action, union members across the country will work to inspire their elected leaders to do the right thing on each of these issues as they come to the fore. Hardly a sparrow falls, here or abroad, that we do not take within the jurisdiction of the trade union movement. And no group of Americans has longer and more vigorously relied on their basic democratic rights than those who have come together, down through the generations, under the banner of trade unionism.

This 1993 AFL-CIO Report on Congress will help you determine which elected representatives stand with us in the pursuit of our vision for the future.

We have tremendous challenges before us.

But if we mobilize our people—if we get the word out to our members and encourage them to become active in their communities—we can win these battles and get the job done for America's working families.

Major Issues

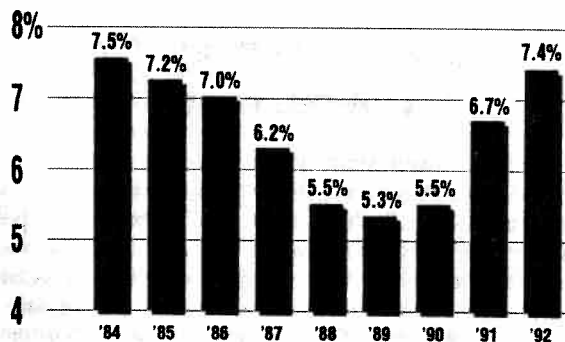
In the House of Representatives

1. Extended Unemployment Benefits

Early in 1993, some 300,000 out-of-work Americans were exhausting their normal 26 weeks of unemployment benefits every month and the problem of long-term unemployment was expected to continue through the year. In fact, the jobless rate remained above 6.5 percent through November.

Jobless rate hits 8-year high

All civilian workers – yearly average



Source: Bureau of Labor Statistics

Good paying jobs continued to disappear throughout 1992 even as the nation's economic turnaround bottomed out. Employers slashed nearly 360,000 jobs in manufacturing, mining, transportation, utilities, and wholesale and retail trade. Although there was a payroll pickup of 694,000 in the lower-paying service sector, many of the jobs were part-time.

As the Bush recession continued to take its toll on the U.S. economy and its workers. In fact, the number of unemployed was higher in early 1993 than in July 1990 when the recession began.

The AFL-CIO supported legislation (H.R. 920) to continue an emergency extended federal unemployment benefits program for workers who had run out of their 26 weeks of state benefits without finding new work. The program began at the height of the Bush recession in 1991 and was extended several times when the employment picture did not brighten. It was set to expire March 4.

H.R. 920 provided up to 26 weeks of additional federal benefits beyond basic state benefits and extended the program through October 1993. The House passed the bill February 24 by a 254-161 vote. It was later signed into law.

FOR—RIGHT AGAINST—WRONG

2. Hatch Act Reform

Since 1939 the Hatch Act has denied federal and postal employees the same political and Constitutional rights other Americans enjoy and exercise in the political process. Hatch Act reform legislation (H.R. 20), backed by the AFL-CIO, would, for the first time in 50 years, allow these workers to participate in a wide range of political activities—on their own time and away from the job.

Under Hatch Act regulations, postal and federal employees are prohibited from participating in a variety of political ac-

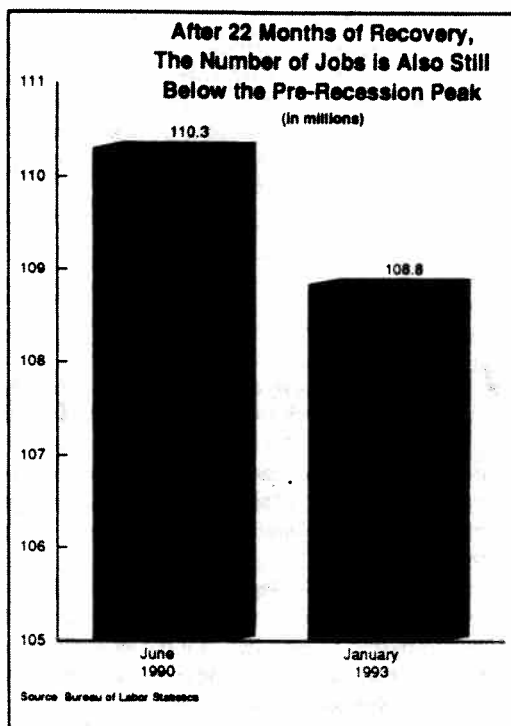
tivities not just on the job, but during the workers' free time as well. For example, such workers could not hand out campaign literature, solicit votes or hold office in a political party.

But H.R. 20 lifts many of the Hatch Act's political restrictions. Federal and postal workers will have the freedom to endorse political candidates, organize phone banks to urge their election, distribute campaign literature, solicit political contributions and engage in most other political activity.

The legislation continues the ban against engaging in these activities while at work, prohibits government and postal workers from using official influence or information for partisan political purposes and bans them from wearing political campaign buttons while on duty and in government buildings.

The House approved H.R. 20 March 3 by a 333-86 vote. Hatch Act reform was later signed into law.

FOR—RIGHT AGAINST—WRONG



3. Stimulus/Jobs

When he first took office, one of President Clinton's major goals was to stimulate a stalled economy and create new jobs. He submitted AFL-CIO-backed legislation (H.R. 1335) aimed at quickly creating jobs through infrastructure investment and other projects.

The economic stimulus plan was designed to create some 500,000 new jobs. Although some economic indicators were showing slight improvement in early 1993, the job recovery coming out of the recession was far weaker than that of any other recovery period.

"At a time when unemployment remains high, when American industries continue to shed jobs, and when the recession continues to batter millions of working families, the plan provides the necessary short-term economic stimulus that will put people back to work... this country desperately

needs the jobs this package would provide," AFL-CIO President Lane Kirkland said.

As proposed, the stimulus bill could have created new jobs—mostly in public works—including a summer jobs program aimed at inner city youth, a program to hire and train 10,000 new police officers, and a new child immunization program.

The House passed the bill March 18 by a 235-190 vote. Later that spring a Senate filibuster killed the stimulus bill.

FOR—RIGHT AGAINST—WRONG

4. Workplace Fairness

Since 1935, workers have been assured by federal law that they have a right to take collective action and a right to strike. American labor law tells workers that they cannot be fired for striking.

But a 1938 Supreme Court ruling, rarely used until the past decade, permits employers to "permanently replace" those same strikers that they are forbidden from discharging.

For all practical purposes, the distinction between being fired and being "permanently replaced" is meaningless. Fired or "permanently replaced" workers still lost their jobs and that is a harsh injustice against those who are exercising a right protected by law.

In the past decade, too many employers have come to view collective bargaining not as a means of negotiating wages and working conditions, but as a way to bust unions by forcing a strike and recruiting a new workforce of permanent replacements. A federal government report showed that between 1985 and 1989, businesses hired permanent replacements in almost one in five strikes and threatened to do so in almost one third of all contract negotiations.

H.R. 5, the Workplace Fairness bill, would ban the use of permanent replacements during a legal economic strike. The House passed the bill 239-190 on June 15. The Senate has yet to act.

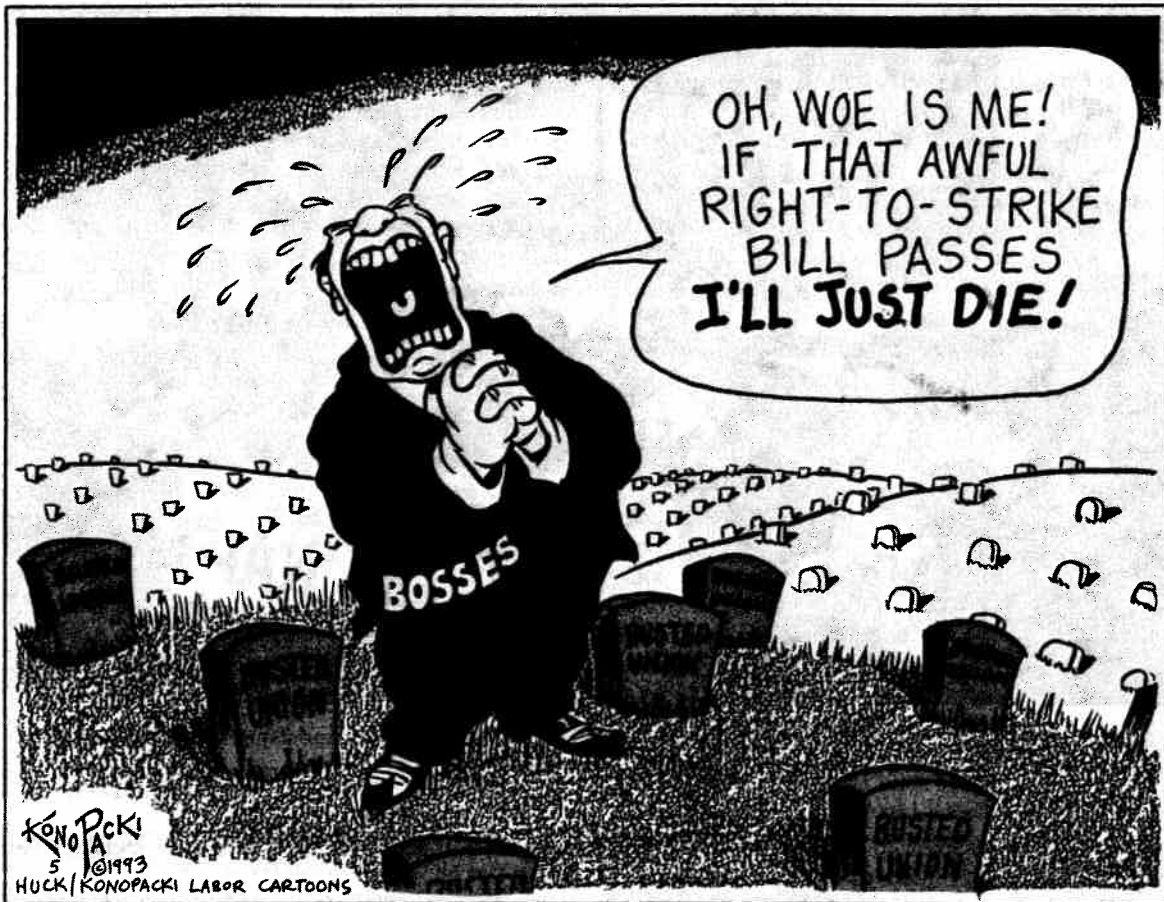
FOR—RIGHT AGAINST—WRONG

5. National Service/Union Concurrence

The labor movement has a long history of community service. So when President Clinton proposed his national service legislation, H.R. 2010, the AFL-CIO backed the president's goal of assisting and improving community services.

Described as an effort to create a domestic Peace Corps, the legislation provides educational grants and stipends to volunteers in a variety of needed service areas such as public safety, environmental and human needs. Those grants and stipends for higher education and job training would be available to all volunteers, which will assist working families and increase their access to educational resources.

The bill also contains a union concurrence provision which provided that in filling these safety needs, existing workers



would not be displaced by the volunteers. The provision provides for union involvement in program planning to ensure that worker displacement does not occur.

An amendment to strike that provision was offered by Rep. Cass Ballenger (R-NC). It failed July 21 153-276. The bill was passed and signed into law.

FOR—WRONG AGAINST—RIGHT

6. ERISA Preemption

Several rulings by Reagan-era federal judges interpreted the federal Employment Retirement Income Security Act of 1974 (ERISA) as preempting certain state laws, in effect allowing employers to avoid state prevailing wage laws, apprenticeship regulations and mechanics' lien laws.

The AFL-CIO strongly backed H.R. 1036, which would remedy this problem known as ERISA preemption. It would clarify that those three types of state laws could not be preempted, something which was never intended when ERISA was passed.

ERISA was intended to make sure employee benefit plans such as pension and health and welfare plans met certain standards, were not governed by multiple government regulations and that benefit plan regulations were the exclusive concern of the federal government. It was not intended to preempt states from setting their own terms under which they contract for public works, goods and services.

H.R. 1036 would, in effect, overturn those decisions and clarify that Congress' intent was never to preempt those types of state laws. If those rulings are allowed to stand, they could

have a devastating impact on tens of thousands of construction and other jobs now contracted for by states.

The House passed H.R. 1036 November 9 by a 276-150 vote. The Senate has yet to act.

FOR—RIGHT AGAINST—WRONG



7. NAFTA

In the 1980s, a growing number of American manufacturing firms began slamming their U.S. factory doors shut and setting up new plants in Mexico. They took advantage of that nation's inexpensive labor pool and lax enforcement of workers' rights laws and workplace safety and environmental regulations. Several hundred thousand American jobs were lost to the maquiladora program.

However, that was just a preview of what is in store for American workers. In 1991, the Bush administration decided to pursue a North American Free Trade Agreement (NAFTA) to give greater protection to the investments



As the vote on NAFTA neared, union members around the country organized rallies and demonstrations, such as this one in Seattle, WA, to try to convince their lawmakers to say "no" to NAFTA.

American firms had already made in Mexico; NAFTA offers no such protection for the American workers whose jobs are at stake. Nor does it protect the rights of Mexican workers. It eliminated or reduced tariffs and duties on products made in Mexico (and Canada), giving U.S. firms an even larger inducement to ship their jobs to Mexico. As many as 500,000 U.S. jobs were at stake.

President Clinton backed NAFTA, but said he would try to alleviate labor's concerns through a set of side agreements on worker rights and the environment. He also offered a dislocated worker program. When completed, those provisions provide little, if any, help for workers and citizens on either side of the border, and the dislocated worker program was grossly inadequate.

A massive and heartfelt grassroots campaign against NAFTA led by union members nearly overcame the power of a White House aligned with corporate America. But the House approved the treaty November 17, 234-200. It was later signed into law.

FOR—WRONG AGAINST—RIGHT

8. Family and Medical Leave

The AFL-CIO has supported family and medical leave legislation since the first bill was introduced in 1985. Many workers have risked their jobs when forced to take time off for the birth or adoption of a child or care for a sick child or spouse or parent. Unlike all other industrialized nations, the United States had no national policy on family leave. If a worker was not covered by a union contract, he or she had to depend on the whims of the employer for time off for serious family problems.

The Federation, and others, took the view that the family leave standard should be considered a minimum labor standard, similar to wage and hour laws and workplace safety standards. But two successful vetoes and massive resistance

from the business community stalled the legislation for eight years.

The Family and Medical Leave Act of 1993 was the first bill introduced in the House in 1993—H.R. 1. Backed by the AFL-CIO, it allows workers at firms of 50 or more employees up to 12 weeks of unpaid but job protected leave—for the birth or adoption of a child, the serious illness of a child, spouse or parent, or the worker's own illness. In addition, the workers retain their health benefits during the leave.

The House passed the bill February 3 by a 265-163 vote. It was signed into law.

FOR—RIGHT AGAINST—WRONG

9. "Motor Voter"

Voter turnout has been steadily decreasing for years. In 1990 only 36 percent of eligible voters went to the polls. While the 1992 three-way presidential race generated a slightly higher than usual turnout, most experts considered that an aberration. Most other nations have about an 80 percent voter turnout, but they also have some form of automatic voter registration, which has been shown to increase voter participation.

The AFL-CIO has long backed improvement in federal election laws aimed at improving voter turnout. Almost 40 percent of eligible voters are not registered. The main reason so many are not is the myriad of state regulations.

H.R. 2, the "motor voter" bill, requires states to establish procedures permitting citizens to register to vote when applying for drivers' licenses and various other licenses and permits at state and federal offices, and it also requires states to establish mail-in voter registration.

The House approved the bill February 4 (259-160) and it was signed into law.

FOR—RIGHT AGAINST—WRONG

10. Budget Reconciliation

The budget reconciliation bill was a complex and vast piece of legislation that was the centerpiece of President Clinton's five-year plan to slash almost \$500 million from the federal deficit. It centered on cuts in federal programs and an increase on taxes for the wealthy and corporations.

The AFL-CIO supported the bill, H.R. 2264, as a step in moving the nation toward tax fairness. The legislation was aimed at invigorating the U.S. economy through careful deficit reduction, combining selective investments in the public infrastructure with revenue increases from those who are most able to pay.

The legislation raises tax rates on corporations and on individuals with taxable incomes of more than \$140,000. At the same time it expands the Earned Income Tax Credit for low-income taxpayers. It also extends the employee tax exemption for employer-provided education benefits and tightens the tax breaks for "runaway" companies which relocate in Puerto Rico.

The House approved the conference report on the bill August 5 by a 218-216 vote. It was signed into law.

FOR—RIGHT AGAINST—WRONG

11. Education/Goals 2000

This major education reform bill, Goals 2000—Educate America Act (H.R. 1804), would for the first time establish national skill and performance standards and include labor participation in developing some of those standards.

The legislation, backed by the AFL-CIO, would establish voluntary national education standards—broad descriptions of the knowledge and skills students should acquire in a particular subject area. The bill also sets student performance standards—what a student must know and be able to do in

order to demonstrate proficiency in the skills and knowledge that the content standards require.

The legislation also establishes a skill standards board which will be charged with studying the national labor market and identifying broad clusters of major occupations that involve one or more industries in the United States. After identifying an occupational cluster, the board would then facilitate the establishment of voluntary labor/business/education partnerships to develop skill standards systems.

The House passed H.R. 1804 October 13 by a 307-118 vote. The Senate has not acted.

FOR—RIGHT AGAINST—WRONG

12. Budget Cuts/Penny-Kasich

In late November, the House considered a Clinton administration deficit reduction bill (H.R. 3400) which included appropriations recissions and portions of Vice President Gore's National Performance Review or "Reinventing Government" proposals. But Representatives Tim Penny (D-MN) and John Kasich (R-OH) offered an amendment which would have added a draconian \$90 billion budget slashing scheme.

The amendment contained specified and unspecified cuts that were irresponsible and counterproductive. This plan would have severely undercut the president's proposed health care reform plan, it would have threatened the still-weak economic recovery and it would have narrowed even further the president's opportunities to fulfill his plans for vital investment initiatives.

The Penny-Kasich plan would have pushed domestic discretionary spending to historically low levels and defense spending even below the administration's deep defense cuts.

Backed by conservative Democrats and most Republicans, the amendment failed 213-219 November 22.

FOR—WRONG AGAINST—RIGHT

Throughout the year leaders on Capitol Hill met with union members and officials. Here House Majority Leader Richard A. Gephardt (D-MO) speaks with the AFL-CIO Executive Council including (R-L) President Lane Kirkland, Gephardt, Secretary/Treasurer Thomas R. Donahue and ACTWU President Jack Sheinkman.



Major Issues

In the United States Senate

1. Stimulus/Jobs

The nation's economy was still suffering the effects of the Bush recession in early 1993. Millions of Americans were out of work and many, many more were jobless for a longer time than in past recessions. While there were some signs of a possible recovery, few new jobs were being created. The toll of trickle-down economics was being paid by American working men and women.

When President Clinton took office, one of his major goals was to stimulate a stalled economy and create new jobs. He submitted, and the AFL-CIO backed, legislation (H.R. 1335) aimed at quickly creating jobs through infrastructure investment and other projects.



As proposed, the stimulus bill would have created up to 500,000 new, mostly public works jobs while establishing a summer jobs program aimed at inner city youth, a program to hire and train 10,000 new police officers, and a new child immunization program.

When the bill reached the Senate after House approval, the Republican minority quickly began a filibuster in an attempt to derail a package that they knew they couldn't defeat on a simple majority vote. Four attempts to achieve cloture and end the filibuster (which requires a three-fifths majority) failed. The fourth and last attempt failed by a 56-43 vote on April 21.

**FOR CLOTURE—RIGHT
AGAINST CLOTURE—WRONG**

2. Hatch Act Reform

Before Hatch Act reform legislation was signed into law in 1993, federal and postal employees had been denied the same political and Constitutional rights other Americans enjoy and exercise in the political process for more than 50 years. Under those Hatch Act regulations, three million postal and federal employees were prohibited from participating in a variety of political activities not just on the job, but during their free time as well. For example such workers could not hand out campaign literature, solicit votes or hold office in a political party.

Hatch Act reform legislation, (S. 185) backed by the AFL-CIO, lifts many of the Hatch Act's political restrictions. Federal and postal workers will now have the freedom to endorse political candidates, organize phone banks to urge their election, distribute campaign literature, solicit political contributions and engage in most other political activity.

The legislation continues the ban against engaging in these activities while at work, prohibits workers from using official influence or information for partisan political purposes and bans government and postal workers from wearing political campaign buttons while on duty and in government buildings.

The Senate passed S. 185 July 20 by a 68-31 vote. It was later signed into law.

FOR—RIGHT AGAINST—WRONG

3. Davis-Bacon/Helpers and Apprentice Programs

When introduced, the FY 1994 Labor and Health and Human Services appropriations bill (H.R. 2518) contained language which prohibited the Department of Labor from spending any money to implement two regulations which were promulgated and approved under the Bush administration. The regulations concerned helpers on Davis-Bacon projects and the administration of apprenticeship programs.

The Davis-Bacon Act requires prevailing wages for "laborers and mechanics" (also known as journeymen) on federal and federally-funded construction projects. The first proposed regulation called for a new category of "helpers" thereby creating a new class of workers who, unlike laborers, would have no formal training and toil at low wages with no hope of advancement within the construction industry. The regulations would also result in severely reducing the level of employment for laborers.

The second regulation, if implemented, would weaken and disrupt the long-standing rules governing the operation of state apprenticeship programs. The worst aspect of the apprenticeship regulation would effectively undercut the authority of the state apprenticeship agencies and force them to accept lower federal standards for training programs.

In an attempt to block an expected effort to strip the



Union members at this April rally on the Capitol steps were calling for an extension of the emergency extended unemployment benefits program and for passage of President Clinton's economic stimulus program.

language from the bill, the Senate voted September 28 (60-39) to maintain those provisions. The bill was later signed into law.

FOR—RIGHT AGAINST—WRONG

4. Cargo Preference

The U.S. merchant marine has suffered through years of neglect. Always expected to be available in times of a military emergency, such as the Persian Gulf War, the U.S.-flag fleet has seen its support from the government dwindle to almost nothing. The number of ships flying the U.S. flag and the Americans crewing those ships has dropped to an all-time low.

Tens of thousands of jobs have been lost to "flag of convenience" carriers who pay abysmally low wages to third and fourth world crews—usually a small fraction of the U.S. minimum wage, let alone anywhere near what a skilled seafarer earns. Many U.S. government shipments are carried by these flag of convenience ships.

But cargo preference laws require that a certain percentage of foreign aid and military cargos be shipped on U.S. vessels. During consideration of the FY 1994 Transportation appropriations bill (H.R. 2750), an amendment was offered which would have banned the government from using U.S.-flag ships if the costs were more than twice as high as the low-wage flag of convenience ships. The amendment was tabled October 5 by a 50-49 vote.

**FOR TABLING—RIGHT
AGAINST TABLING—WRONG**

5. Extended Unemployment Benefits/Mean Testing

While the economy began to show stronger signs of recovery as 1993 came to an end, about a quarter of a million

jobless American workers were exhausting their normal 26 weeks of unemployment benefits every month in the summer and fall of 1993. Long term unemployment was expected to continue to be a major problem.

Job creation was lagging far behind what it had been following the previous two recession low points. Millions of workers were not finding new jobs before their 26 weeks of state unemployment benefits ran out. An extended benefits program granting extra weeks of benefits had been operating since the height of the Bush recession. Extended several times, it expired October 1.

The AFL-CIO supported legislation (H.R. 3167) which would continue the program through March 1994. But action on the bill slowed as the Senate debated controversial amendments.

An amendment offered by Sen. Hank Brown (R-CO) would have established for the first time means testing for a social insurance program by denying benefits to anyone who had earned \$120,000 in the previous year. The AFL-CIO was opposed to the amendment because of the precedent it would set; allowing means testing for a social insurance program. But it was approved October 27 by a 52-43 vote. It was later dropped in conference and the bill was signed into law.

FOR—WRONG AGAINST—RIGHT

6. Extended Unemployment Benefits/Federal Workforce Reduction

During consideration of the conference report on H.R. 3167 (see above) Sen. Phil Gramm (R-TX) made a motion to recommit the bill to conference with instructions to add an amendment which had been dropped in conference. The amendment mandated a 252,000 federal workforce reduction.

The AFL-CIO opposed the amendment because it could

seriously damage the federal workforce and the delivery of services. The Clinton administration had called for a similar reduction earlier in the year, but that reduction is expected to be achieved after careful consideration of its impact on the workers involved and the services they provide. The reduction will also follow consultation with the unions involved to develop a program of early retirement and buy outs. The Gramm amendment did not provide the opportunity for any such careful action and could have resulted in wholesale firings.

The motion to recommit failed November 20 by a 36-63 vote.

**FOR RECOMMITMENT—WRONG
AGAINST RECOMMITMENT—RIGHT**



The heart and soul of the grassroots campaign against NAFTA were the tens of thousands of union members who wrote or phoned their senators and representatives and who marched and rallied to try to defeat the jobs-killing trade deal. This rally took place in Dayton, Ohio.

7. NAFTA

In the past decade, hundreds of thousands of American workers have seen their factory doors slammed shut and their jobs shipped to Mexico, where U.S. firms set up new plants to take advantage of that nation's inexpensive labor pool and lax enforcement of workers' rights laws and workplace safety and environmental regulations. In some cases, U.S. workers have been told to crate up their manufacturing machinery and load it onto trucks headed for the border.

Before being voted out of office, President Bush completed negotiations for a North American Free Trade Agreement (NAFTA) which gave great protection to the investments American firms had already made in Mexico, while it offered no such protection for the U.S. workers or the political rights of workers in Mexico. It also reduced many tariffs and duties for trade between the three North American nations. That gives American firms an even larger inducement to ship their jobs to Mexico. As many as 500,000 American jobs are at stake.

President Clinton backed NAFTA, but said he would try to alleviate labor's concerns through a set of side agreements on worker rights and the environment and offered a new dislocated worker program. When completed, those provi-

sions provided little, if any, help for workers and citizens on either side of the border. The dislocated worker program was grossly inadequate.

A massive and heartfelt grassroots campaign against NAFTA led by union members captured the headlines of the nation's newspapers and almost overcame the power of the White House and corporate America. But the Senate approved the treaty November 20 61-38. It was later signed into law.

FOR—WRONG AGAINST—RIGHT

8. Family and Medical Leave

Many workers have risked their jobs when forced to take

time off for the birth or adoption of a child or to care for a sick child, spouse or parent. Unlike all other industrialized nations, the United States had no national policy on family leave. If a worker was not covered by a union contract, he or she had to depend on the whims of the employer for time off for serious family problems.

When the first family and medical leave legislation was introduced in 1985, the AFL-CIO stood firmly behind it. Like wage and hour laws and workplace safety mandates, the family leave standard should be considered a minimum labor standard. But two successful vetoes and massive resistance from the business community stalled the legislation for eight years.

The Family and Medical Leave Act of 1993 (S. 5) was one of the first bills set for action in 1993. It allows workers at firms of 50 or more employees up to 12 weeks of unpaid, but job protected leave—for the birth or adoption of a child, the serious illness of a child, spouse, parent or the worker's own illness. In addition, the worker's health benefits continue during the leave.

The Senate passed the bill February 4 by a 71-27 vote. It was signed into law.

FOR—RIGHT AGAINST—WRONG

9. "Motor Voter"

The AFL-CIO has long backed improvement in federal election laws aimed at increasing voter turnout. One proven way to do that is to ease voter registration restrictions. Almost 40 percent of eligible voters are not registered. The main reason so many are not is the myriad of state regulations.

Voter turnout has been steadily decreasing for years. While the 1992 three-way presidential race generated a higher than usual turnout, most experts considered that an aberration. Most other nations have about an 80 percent voter turnout, but they also have some form of automatic voter registration.

S. 460 the "motor voter" bill requires states to establish procedures permitting citizens to register to vote when applying for drivers' licenses and various licenses and permits at state and federal offices. It also requires states to establish mail-in voter registration.

Republicans led a filibuster against the bill. A cloture motion, which requires a three-fifths majority to end a filibuster,

failed March 16 by a 59-41 vote. Cloture was achieved later in the spring and the bill was passed and signed into law.

**FOR CLOTURE—RIGHT
AGAINST CLOTURE—WRONG**

10. Campaign Finance Reform

For years the AFL-CIO has supported efforts to change federal election laws in an effort to clean up the way political campaigns are financed. Some of the reform ideas backed by the AFL-CIO include candidate expenditure and personal contribution limits, developing a public financing formula, closing current loopholes that are used to evade present contribution limits and an overall limit on the amount a candidate is permitted to accept in political action committee (PAC) contributions.

But the Senate version of proposed campaign finance



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reform does not address the real issues of reform. While it called for the ban on all PAC donations—even those built upon the small donations of union members—it keeps the door open for wealthy fat cats who can afford to drop up to \$25,000 a year on campaign contributions to political candidates.

Small contributor PACs afford the only opportunity for working people to effectively participate in the funding of campaigns in the absence of public financing. The main result of such a ban on PACs, if it stands, will be to prohibit low- and middle-income workers from combining their limited resources to gain a political voice, while permitting upper-income individuals to maintain access and influence.

So long as contribution limits are beyond the means of working people, PACs are necessary to maintain a political balance.

On May 26 the Senate approved (85-12) an amendment to S. 3 calling for a ban on all PAC donations. The bill was then passed. The House also passed a reform bill which maintains PAC donations and a conference is expected in 1994.

FOR—WRONG AGAINST—RIGHT

11. Budget Reconciliation

President Clinton's five-year plan to slash almost \$500 million from the federal deficit was centered on cuts in federal programs and an increase on taxes for the wealthy and corporations. These provisions and many others were contained in the budget reconciliation bill, a complex and vast piece of legislation.

The AFL-CIO supported the bill, H.R. 2264, as a step in moving the nation toward tax fairness. The legislation was aimed at invigorating the U.S. economy through careful deficit reduction, combined with selective investments in the public infrastructure and progressive revenue increases for those who are most able to pay.

The legislation raises taxes on corporations and on those with taxable incomes of more than \$140,000. At the same time it expands the Earned Income Tax Credit for low-income taxpayers. It also extends the employee tax exemption for

employer-provided education benefits and tightens the tax breaks for "runaway" companies which relocate in Puerto Rico.

The Senate approved the conference report on the bill August 6 by a 50-49 vote with Vice President Al Gore breaking a 49-49 tie. It was signed into law.

FOR—RIGHT AGAINST—WRONG



Many major labor issues will come before Congress in 1994, including OSHA reform, workplace fairness, health care reform, a constitutional amendment to balance the budget and many others. Union members will again play key roles in any congressional battle.

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